



Torres Strait Fisheries (Crab) Management Instrument 2025

The Protected Zone Joint Authority make the following instrument.

Dated 19 December 2025

The Hon Julie Collins MP, Commonwealth Minister for Agriculture, Fisheries and Forestry

The Hon Anthony (Tony) Perrett MP, Queensland Minister for Primary Industries

Mr George Nona, Chairperson, Torres Strait Regional Authority

For and on behalf of the Protected Zone Joint Authority

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1 Name

This instrument is the *Torres Strait Fisheries (Crab) Management Instrument 2025*.

2 Commencement

This instrument commences on the day after it is registered on the Federal Register of Legislation.

3 Authority

This instrument is made under section 16(1) and section 35(1)(a) of the Act.

4 Definitions

Note: A number of expressions used in this instrument are defined in section 3 of the Act, including the following:

- (a) community fishing
- (b) fish
- (c) traditional inhabitant
- (d) traditional fishing.

In this instrument:

Act means the *Torres Strait Fisheries Act 1984*.

Crab means fish of the infraorders Anomura and Brachyura other than spanner crabs (*Ranina ranina*).

Crab apparatus means a crab pot or a dilly.

Crab fishery means the area of the crab fishery prescribed in item 2 of Schedule 2 to the *Torres Strait Fisheries Regulations 1985*.

Crab licenced person means a person who has been granted a licence under subsection 19(2), 19(3) or 19(4A) of the Act that authorises the taking, processing or carrying of crab in the crab fishery.

Crab pot means crab apparatus comprising a cage with a round opening in the top, or an elongated opening (parallel to the base) in the side, for trapping crabs.

Dilly means fishing apparatus comprising a frame and a net that hangs below the frames horizontal plane when the apparatus is in use.

PZJA Arrangement means the document titled “*Arrangement between the Commonwealth and the State of Queensland under section 31 of the Torres Strait Fisheries Act 1984*” dated 17 March 1999 and published on the Federal Register of Legislation, as that document exists at the commencement of this instrument.

Note: The PZJA Arrangement could be viewed on the website of the Federal Register of Legislation at: <https://www.legislation.gov.au/Details/F2008B00750>.

Regulations means the *Torres Strait Fisheries Regulations 1985*.

5 Schedules

Each instrument that is specified in a Schedule to this instrument is amended or repealed as set out in the applicable items in the Schedule concerned, and any other item in a Schedule to this instrument has effect according to its terms.

6 Prohibition on taking, processing or carrying crab

- (1) The taking, processing or carrying of crab in the area of the crab fishery is prohibited.

Note: This prohibition does not apply to traditional fishing because traditional fishing is excluded from the definition of commercial fishing and as such, cannot be a Protected Zone Joint Authority fishery under the PZJA Arrangement.

- (2) Except in relation to the taking or carrying of female crabs, a person is exempt from the prohibition in subsection (1) when:

- (a) The person is a crab licensed person.

7 Prohibition on the use of certain equipment

- (1) A crab licensed person is prohibited from using or having in his or her possession or under his or her control in the course of commercial fishing more than 50 crab apparatus.

Note: This prohibition applies on a boat, and without the use of a boat. This prohibition does not apply to traditional fishing because traditional fishing is excluded from the definition of commercial fishing and as such, cannot be a Protected Zone Joint Authority fishery under the PZJA Arrangement.

8 Prohibition on taking, processing or carrying of crab of a certain size

- (1) The taking, processing or carrying of crab by a crab licenced person is prohibited except where:

- (a) When measured across the widest part of the carapace they are not less than 150 millimetres in length; or
- (b) If the carapace is missing, when measured across the underside of the body on one side, from the notch at the junction of the claw with the body to the notch at the junction of the last leg with the body they are not less than:
- i. In the case of blue swimmer crabs. 37 millimetres in length; and
 - ii. In the case of mud crabs, 46 millimetres in length.

Note: This prohibition does not apply to traditional fishing because traditional fishing is excluded from the definition of commercial fishing and as such, cannot be a Protected Zone Joint Authority fishery under the PZJA Arrangement.

9 Prohibition on the use of a boat of a certain size

- (1) The taking, processing or carrying of crab by a crab licensed person is prohibited with the use of a boat of a kind that is longer than 14 metres.

Note: This prohibition does not apply to traditional fishing because traditional fishing is excluded from the definition of commercial fishing and as such, cannot be a Protected Zone Joint Authority fishery under the PZJA Arrangement.

10 Prohibition on the use, possession or control of crab apparatus

- (1) A crab licenced person is prohibited from using, from having in his or her possession, or from having under his or her control, on a boat in the area of the crab fishery, crab apparatus unless:
- (a) It has a tag affixed with the owner's name appearing on it; and
 - (b) It has a light-coloured float of at least 150 millimetres in any dimension attached on which is recorded the distinguishing numbers of the licenced person's boat.

Schedule 1—Repeals

Torres Strait Fisheries Management Notice No. 50

1 The whole of the instrument

Repeal the instrument.